

AUG 20 1993



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8119
(FOURTH REVISION)

1. B.J. Services Co., Houston, Texas is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to transport packages prescribed herein of certain hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes use of a non-DOT specification cargo tank, and provides no relief from any regulation other than specifically stated.
2. BASIS. This exemption is based on B.J. Titan Services' application dated August 5, 1993, submitted in accordance with 49 CFR 107.105
3. HAZARDOUS MATERIALS (Descriptor and class). The following hazardous materials:
 - a. Inhibited hydrochloric acid not exceeding 28% strength and acid mixtures having corrosive effect on steel no greater than that of inhibited hydrochloric acid 28% strength classed as corrosive materials.
 - b. Mixtures of inhibited hydrochloric acid and hydrofluoric acid provided the corrosive effect on steel of such mixtures is no greater than of inhibited hydrochloric acid of 28% strength, classed as corrosive material.
 - c. Flammable liquids having vapor pressure not over 27 pounds per square inch absolute at 100°F, classed as flammable liquids.
 - d. Liquid or semi-solid waste hazardous materials resulting from the use of the above materials in industrial cleaning and/or oil well acidizing operations.
4. PROPER SHIPPING NAME (49 CFR 172.101). Specific commodity name, or generic description, as appropriate.
5. REGULATION AFFECTED. 49 CFR 173.119(a) and (m), 173.245(a), 173.263(a), 178.342-5, 178.343-5.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a privately owned and operated lined or unlined non-DOT specification cargo tank designed and constructed in full compliance with DOT Specification MC-306 or MC-312 (49 CFR 178.340, 178.343) except as follows:

AUG 20 1993

Continuation of 4th Rev. DOT-E 8119

Page 2

a. The cargo tank must be in compliance with B.J. Hughes's application dated September 26, 1978.

b. In place of internal valves prescribed in 49 CFR 178.343-5(b), each tank may be equipped with bottom discharge outlets having an effective and reliable shut-off valve immediately adjacent to the tank proper. No part of this valve or its associated piping shall extend beyond the vehicle frame or vertically below the bottom of the frame. Any pipe not permanently connected to a pump or other appurtenance, and any pump or appurtenance so connected, shall have a plug, a sealing cap or blind flange to be in place and closed tight against leakage during transportation.

c. The metal identification plate and the manufacturer's certificate must not be marked to indicate compliance with DOT MC-306 or MC-312 specifications but instead must bear reference to DOT-E 8119.

d. Tanks may be designed for multipurpose use as authorized in 49 CFR 178.340; the certification plate requirements for multipurpose tanks as described in 49 CFR 178.340-10 would be applicable.

e. Tanks that are to be used in transporting flammable waste materials must be equipped with a pressure relief devices complying with 49 CFR 178.342-4.

f. No new construction is authorized after August 31, 1993.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Each cargo tank must be reinspected and retested once every year in accordance with 49 CFR 177.824 as prescribed for DOT Specification MC-306 or MC 312 cargo tanks, as appropriate, at one and one-half times the sum of the design pressure plus the static head. Reinspection must include ultrasonic thickness measurements in accordance with procedures on file with the Office of Hazardous Materials Transportation (OHMT).

c. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 8119."

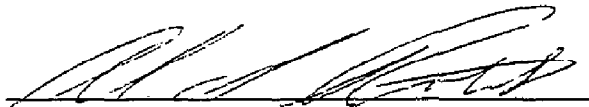
d. Subject tanks must be used only in transportation incidental to the performance of services described in B.J. Hughes' petition dated August 17, 1971 on file with the OHMT.

e. When a cargo tank is lined, the lining must be in accordance with 49 CFR 178.343-2(b).

9. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

10. EXPIRATION DATE. March 1, 1994, or upon completing the remarking of each cargo tanks as required by 49 CFR 180.405(f), whichever occurs first.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 20 1993

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA.